

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Mohamed Camara and Mamed Coulibaly,	:	
	:	
Plaintiffs,	:	
	:	AMENDED VERIFIED
	:	COMPLAINT
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Police Officer Hanna Cottignies, Shield 468 of the 44	:	
Precinct and New York City Police Officers John Doe,	:	
	:	
Defendants.	:	
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Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Mohamed Camara, (hereinafter referred to as “CAMARA”) resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Mamed Coulibaly, (hereinafter referred to as “COULIBALY”) resides in Bronx County, State of New York.
3. That at all times hereinafter mentioned, Police Officer Hanna Cottignies, Shield 468 of the 44 Precinct, (hereinafter referred to as “COTTIGNIES”) was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the officers involved in the arrest of Plaintiffs, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

7. On or about January 2, 2023 notice required by Municipal Law 50-E was given to City of New York, by personal service as to CAMARA. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

8. On or about August 31, 2023 notice required by Municipal Law 50-E was given to City of New York, by personal service as to COULIBALY. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

9. That on or about February 1, 2024 the Honorable Mitchell Danziger deemed the notice of claim timely as to all causes of action listed herein.

10. On or about March 17, 2023 a hearing required by Municipal Law 50-H was conducted for CAMARA. At said hearing CAMARA testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

11. On or about January 12, 2024 a hearing required by Municipal Law 50-H was conducted for COULIBALY. At said hearing COULIBALY testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

12. That on or about December 30, 2022 at approximately 8:30 PM in the vicinity of 169 Street and Grand Concourse, Bronx, NY, COULIBALY was seated as the passenger of a car while CAMARA was on the sidewalk and they were speaking. After CAMARA walked away from the car COULIBALY was seated in, both CAMARA and COULIBALY were stopped, handcuffed and arrested by COTTIGNIES and DOES.

13. That at no time was CAMARA or COULIBALY engaged in any criminal or unlawful conduct.

14. That at no time was CAMARA in possession of stolen property nor did he exercise custody and control over stolen property.

15. That at no time was COULIBALUY in possession of stolen property nor did he exercise custody and control over stolen property.

16. That after Plaintiffs were arrested they were each taken to the 44 precinct.

17. That while at the 44 precinct, each of the Plaintiffs were subjected to a search and that nothing of an illegal or unlawful nature was recovered.

18. That while at the 44 precinct, Plaintiffs were placed into a cell with numerous other males.

19. That after being held at the 44 precinct for several hours, Plaintiffs were each transported to Central Booking, located at 215 East 161 Street, Bronx NY.

20. That while inside of Central Booking, Plaintiffs were forced to remain inside of a holding cell with numerous other people.

21. That on or about December 31, 2022, each of the Plaintiffs were released after the Office of the Bronx District Attorney declined to prosecute the arrests of CAMARA and COULIBALY.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

22. Plaintiff CAMARA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 21 as if more fully stated herein at length.

23. That Defendants acted with actual malice toward Plaintiff CAMARA and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

24. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

25. That as a result of the actions by Defendants, Plaintiff CAMARA was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

26. That as a result of the Defendants' actions, Plaintiff CAMARA has been unable to sleep.

27. That as a result of the Defendants actions, Plaintiff CAMARA was forced to miss multiple days of work.

28. That as a result of the Defendants' actions Plaintiff CAMARA sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

29. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 28, as if more fully stated herein at length.

30. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff CAMARA as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

31. Defendants having no lawful authority to arrest Plaintiff CAMARA, did, nevertheless, unlawfully arrest Plaintiff CAMARA with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus, Plaintiff CAMARA is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

32. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 31 as if more fully stated herein at length.

33. Defendants conspired to violate Plaintiff CAMARA's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff CAMARA is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. Plaintiff CAMARA was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff CAMARA to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff CAMARA by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of CAMARA. Plaintiff CAMARA is thus entitled to compensatory and exemplary damages.

36. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff CAMARA by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. At all times pertinent hereto, COTTIGNIES and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

39. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that COTTIGNIES and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff CAMARA. Plaintiff CAMARA is thus entitled to compensatory exemplary damages.

42. That the City of New York and New York City Police Department were aware that COTTIGNIES was the subject of numerous substantiated Civilian Complaint Review Board complaints and yet, they continued to employ COTTIGNIES.

43. That the City of New York and New York City Police Department were aware that COTTIGNIES was disciplined for her actions of improperly using pepper spray against another person.

44. That the City of New York and New York City Police Department were aware that COTTIGNIES was disciplined for her actions of failing to render police assistance to someone in need of assistance.

45. That the City of New York and New York City Police Department were aware that COTTIGNIES was the subject of a civil rights lawsuit, Trini Almonte, V. City of New York et

al, under index number 815191/2022E in Bronx County Civil Supreme Court and yet they continued to employ COTTIGNIES.

46. That the City of New York and New York City Police Department were aware that COTTIGNIES was the subject of a civil rights lawsuit, Magda Ubilla v. City of New York et al under index 803397/2022E in Bronx County Civil Supreme Court and yet they continued to employ COTTIGNIES.

47. That the City of New York and New York City Police Department were aware that COTTIGNIES was the subject of a civil rights lawsuit, Rauf Yearde v. City of New York et al, under index 804077/2021E in Bronx County Civil Supreme Court and yet they continued to employ COTTIGNIES.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

48. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 47, as if more fully stated herein at length.

49. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff CAMARA.

50. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff CAMARA.

AS AND FOR AN EIGHTH CAUSE OF ACTION AS AGAINST DEFENDANTS

51. Plaintiff COULIBALY repeats, reiterates and realleges the allegations contained in paragraphs 1 through 50 as if more fully stated herein at length.

52. That Defendants acted with actual malice toward Plaintiff COULIBALY and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff COULIBALY.

53. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

54. That as a result of the actions by Defendants, Plaintiff COULIBALY was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

55. That as a result of the Defendants' actions, Plaintiff COULIBALY has been unable to sleep.

56. That as a result of the Defendants' actions, Plaintiff COULIBALY was forced to miss multiple days of work.

57. That as a result of the Defendants' actions Plaintiff COULIBALY sustained damage to his persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

58. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 57, as if more fully stated herein at length.

59. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff COULIBALY as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

60. Defendants having no lawful authority to arrest Plaintiff COULIBALY, did, nevertheless, unlawfully arrest Plaintiff COULIBALY with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff COULIBALY is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

61. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 60, as if more fully stated herein at length.

62. Defendants conspired to violate Plaintiff COULIBALY's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus, Plaintiff COULIBALY is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR AN ELEVENTH CAUSE OF ACTION AS DEFENDANTS

63. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 62, as if more fully stated herein at length.

64. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff COULIBALY to suffer physical and severe emotional distress for which the Defendants

are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution of Plaintiff COULIBALY by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff COULIBALY. Plaintiff COULIBALY is thus entitled to compensatory and exemplary damages.

65. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff CAMARA by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

66. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff CAMARA having known that there was exculpatory evidence showing that he did not commit a crime and despite such, he was arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

67. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 66, as if more fully stated herein at length.

68. At all times pertinent hereto, COTTIGNIES and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

69. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that COTTIGNIES and DOES committed within the scope of his employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT**

70. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 69, as if more fully stated herein at length.

71. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff COULIBALY. Plaintiff COULIBALY is thus entitled to compensatory exemplary damages.

72. That the City of New York and New York City Police Department were aware that COTTIGNIES was the subject of numerous substantiated Civilian Complaint Review Board complaints and yet, they continued to employ COTTIGNIES.

73. That the City of New York and New York City Police Department were aware that COTTIGNIES was disciplined for her actions of improperly using pepper spray against another person.

74. That the City of New York and New York City Police Department were aware that COTTIGNIES was disciplined for her actions of failing to render police assistance to someone in need of assistance.

75. That the City of New York and New York City Police Department were aware that COTTIGNIES was the subject of a civil rights lawsuit, Trini Almonte, V. City of New York et al, under index number 815191/2022E in Bronx County Civil Supreme Court and yet they continued to employ COTTIGNIES.

76. That the City of New York and New York City Police Department were aware that COTTIGNIES was the subject of a civil rights lawsuit, Magda Ubilla v. City of New York et al under index 803397/2022E in Bronx County Civil Supreme Court and yet they continued to employ COTTIGNIES.

77. That the City of New York and New York City Police Department were aware that COTTIGNIES was the subject of a civil rights lawsuit, Rauf Yearde v. City of New York et al, under index 804077/2021E in Bronx County Civil Supreme Court and yet they continued to employ COTTIGNIES.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

78. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 77, as if more fully stated herein at length.

79. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff COULIBALY.

80. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff COULIBALY.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton conduct of Defendants' actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful conduct of the Defendants' actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

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STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the Plaintiff is because the Plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the Plaintiff, review of records and documents within affirmant's possession.

Affirmed: February 4, 2024

Jason Steinberger
Jason A. Steinberger